

XPesa Creators

Terms of Service

The rules and agreement for using XPesa

Effective Date: May 2026

XPesacreators.xyz

Terms of Service

Last updated: May 2026. These Terms of Service ("Terms") govern your access to and use of the XPesa Creators platform at XPesacreators.xyz ("Platform"). By creating an account or using XPesa in any way, you agree to be bound by these Terms. If you do not agree, do not use the Platform.

1. About XPesa

XPesa Creators is a creator monetization platform that enables creators to gate digital content and links behind USDC cryptocurrency payments on the Avalanche blockchain, and to receive Mobile/Bank fiat withdrawals of their earnings. XPesa is currently in beta and operates on the Avalanche Fuji testnet for testing purposes and Avalanche C-Chain mainnet for live transactions.

2. Eligibility

- You must be at least 18 years of age to use XPesa
- You must have the legal capacity to enter into a binding contract
- You must not be prohibited from using the Platform by applicable law
- If you are using XPesa on behalf of an organization, you represent that you have authority to bind that organization

By using XPesa, you represent and warrant that you meet all eligibility requirements.

3. Account Registration

3.1 Creator Accounts

Creators must register an account to publish links and receive payments. You agree to:

- Provide accurate, current, and complete information during registration
- Maintain and update your information to keep it accurate
- Keep your password and account credentials secure
- Not share your account with any other person
- Notify us immediately of any unauthorized access to your account

3.2 Wallet Requirement

Creators must connect or create an Avalanche-compatible cryptocurrency wallet. XPesa does not hold, custody, or control creator funds at any time. All payments are

sent directly to the wallet address you provide. You are solely responsible for the security of your wallet and private keys.

3.3 Fan Accounts

Fans (buyers) do not require an XPesa account. Fans connect a wallet to make payments. By connecting a wallet and making a payment, fans agree to these Terms.

4. Creator Responsibilities and Acceptable Use

4.1 Content You May Sell

You may use XPesa to monetize:

- Original digital content you own or have rights to distribute (documents, guides, templates, notes)
- Access to external platforms and resources you legitimately control (Google Drive folders, Notion pages, private groups)
- Consultation and meeting access (Zoom links, Google Meet links)
- Tips and appreciation payments from your community

4.2 Prohibited Content

You may NOT use XPesa to sell or gate access to:

- Content that infringes any copyright, trademark, or intellectual property rights
- Pornographic, sexually explicit, or adult content of any kind
- Content involving minors in any inappropriate context
- Malware, viruses, or any harmful software
- Illegal goods, services, or activities under Kenyan law or the laws of your jurisdiction
- Content promoting violence, terrorism, hate speech, or discrimination
- Fraudulent or deceptive content — content must match what you describe
- Gambling services or unlicensed financial services
- Prescription drugs, controlled substances, or illegal firearms
- Personal data of third parties without their consent
- Content designed to harass, threaten, or harm any individual

4.3 Content Accuracy

You are responsible for ensuring that your content accurately matches what you describe on your payment page. Misleading descriptions that cause fans to pay for something materially different from what they receive are a violation of these Terms and may result in account suspension and necessary legal actions.

4.4 Creator Warranties

By publishing a link on XPesa, you warrant that:

- You own or have the right to sell access to the content
- The content does not violate any applicable law
- You will fulfil your obligations to buyers in good faith
- You will not artificially inflate views, payments, or engagement metrics

5. Payments and Fees

5.1 Payment Processing

All payments on XPesa are processed in USDC (USD Coin) on the Avalanche C-Chain blockchain. Transactions are irreversible once confirmed on-chain. XPesa does not process credit card or bank transfer payments directly.

5.2 Platform Fee

XPesa charges a 5% platform fee on all transactions. This fee is:

- Deducted automatically at the time of payment
- Non-refundable
- Applied to the gross transaction amount before the creator receives their portion
- 95% of each payment is sent directly to the creator's wallet

Example: if a fan pays 10 USDC, the creator receives 9.50 USDC and XPesa receives 0.50 USDC.

5.3 Gas Fees

XPesa sponsors gas fees for fans using embedded (email-based) wallets via smart account abstraction. Fans with external wallets (MetaMask, etc.) are responsible for their own gas fees. Gas fees on Avalanche C-Chain are typically less than \$0.01 per transaction.

5.4 Fiat Withdrawals

Creators may withdraw their USDC earnings to fiat (KES, UGX, etc) via our integration with Kotani Pay. Withdrawal is subject to:

- Kotani Pay's conversion fees (typically 1-2% of the withdrawal amount)
- Current USDC/KES exchange rates at time of withdrawal
- Minimum withdrawal amounts set by Kotani Pay
- Kotani Pay's terms of service and KYC requirements

XPesa is not responsible for delays, errors, or losses arising from Kotani Pay's services. Fiat withdrawals are subject to provider's transaction limits.

5.5 No Refunds Policy

All payments on XPesa are final and non-refundable due to the irreversible nature of blockchain transactions. Creators are responsible for resolving any disputes with their buyers directly. If a creator is found to have engaged in fraudulent conduct, XPesa may, at its discretion, suspend the creator's account but cannot reverse blockchain transactions.

5.6 Testnet / Beta Transactions

Transactions on the Avalanche Fuji testnet (used during XPesa's beta phase) use test tokens with no real monetary value. XPesa makes no representations about the reliability of testnet operations. Moving from testnet to mainnet may require creators to reconnect their mainnet wallets.

6. Content Access and Protection

6.1 Access Tokens

Upon successful payment, XPesa issues an access token to the fan's wallet. This token governs access to the purchased content according to the expiry settings the creator configured. Access tokens are:

- Bound to the wallet address that made the payment
- Non-transferable — they cannot be shared with or used by other wallets
- Subject to expiry terms set by the creator (one-time, timed, or permanent)

6.2 Content Protection Limitations

XPesa provides technical protections for uploaded documents and file packs including wallet binding, viewer-only access, and wallet address watermarking. However, XPesa cannot prevent screen recording, photography, or other methods of copying content that circumvent technical protections. Creators accept this limitation by choosing to publish on XPesa.

6.3 Gate Links

For gate links (where a creator gates an external URL), once a fan has received the destination URL, they may share it with others. XPesa's protection for gate links is limited to preventing access before payment — it cannot prevent the sharing of revealed URLs. Creators are responsible for using access-controlled destination platforms (password-protected Notion pages, restricted Google Drive, etc.) for stronger protection.

7. Intellectual Property

7.1 Your Content

You retain all intellectual property rights in content you upload to or link from XPesa. By using the Platform, you grant XPesa a limited, non-exclusive, royalty-free license to store, display, and serve your content solely for the purpose of operating the Platform.

7.2 XPesa's Property

The XPesa Platform, including its design, code, trademarks, and documentation, is the property of XPesa Creators. You may not copy, modify, distribute, or create derivative works from XPesa without our express written permission.

7.3 Copyright Infringement

If you believe content on XPesa infringes your copyright, please contact us at info@XPesacreators.xyz with details of the allegedly infringing content, your contact information, and a statement that you have a good-faith belief the use is unauthorized. We will investigate and take appropriate action.

8. Disclaimers and Limitation of Liability

8.1 Platform Provided "As Is"

XPesa is provided on an "as is" and "as available" basis. We make no warranties, express or implied, regarding the Platform's reliability, accuracy, fitness for a particular purpose, or uninterrupted availability. We are in beta — the Platform may have bugs, downtime, and unexpected behaviour.

8.2 Cryptocurrency Risks

You acknowledge and accept the following risks inherent in cryptocurrency use:

- Cryptocurrency values can fluctuate significantly
- Blockchain transactions are irreversible — sent funds cannot be recovered
- Smart contract vulnerabilities may result in loss of funds
- Regulatory changes may affect your ability to use cryptocurrency
- You are solely responsible for the security of your wallet and private keys
- Loss of wallet access means permanent loss of associated funds and content access

8.3 Limitation of Liability

To the maximum extent permitted by applicable law, XPesa Creators and its founder shall not be liable for any indirect, incidental, special, consequential, or punitive damages, including loss of profits, data, or goodwill, arising from your use of or inability to use the Platform. Our total liability to you for any claims arising from these Terms

shall not exceed the total fees paid by you to XPesa in the 12 months preceding the claim.

8.4 Third-Party Services

XPesa integrates with third-party services including Kotani Pay, ThirdWeb, Supabase, and Avalanche. We are not responsible for the availability, accuracy, or actions of these third-party services. Your use of these services is governed by their respective terms.

9. Indemnification

You agree to indemnify and hold harmless XPesa Creators, its founder, and any affiliates from any claims, losses, damages, liabilities, and expenses (including legal fees) arising from: (a) your use of the Platform; (b) content you publish on XPesa; (c) your violation of these Terms; (d) your violation of any third-party rights; or (e) your violation of applicable law.

10. Account Termination

10.1 Termination by You

You may delete your account at any time via the Settings page. Account deletion will deactivate all your links and remove your creator profile. Transaction records are retained for legal and financial record-keeping purposes.

10.2 Termination by XPesa

We reserve the right to suspend or terminate your account at any time, with or without notice, if we determine that you have violated these Terms, engaged in fraudulent activity, or if required by law. We may also terminate accounts for prolonged inactivity.

10.3 Effect of Termination

Upon termination, your access to the Platform ceases, your links are deactivated, and your uploaded content will be deleted within 30 days. Earned funds already in your wallet are not affected — XPesa does not hold your funds.

11. Dispute Resolution

If you have a dispute with another user (creator or fan), you should attempt to resolve it directly. XPesa may, at its discretion, provide assistance in facilitating resolution but is not obligated to act as an arbitrator.

Any disputes between you and XPesa arising from these Terms shall first be addressed through good-faith negotiation. If unresolved within 30 days, disputes shall be subject to the jurisdiction of the courts of Nairobi, Kenya, and governed by the laws of Kenya.

12. Changes to These Terms

We may modify these Terms at any time. We will notify you of material changes by posting a notice on the Platform or by email at least 14 days before changes take effect. Your continued use of XPesa after the effective date constitutes acceptance of the revised Terms. If you do not agree to the revised Terms, you must stop using the Platform.

13. Governing Law

These Terms are governed by and construed in accordance with the laws of Kenya, without regard to conflict of law principles.

14. Entire Agreement

These Terms, together with the Privacy Policy, constitute the entire agreement between you and XPesa Creators regarding the Platform and supersede all prior agreements.

15. Contact

For questions about these Terms:

XPesa Creators

Email: info@XPesacreators.xyz

Website: XPesacreators.xyz